

Notice No. 06/2024 of January 19, 2024

Subject: request for an opinion regarding

- A draft decree relating to administrative simplification and electronic communications between users and the public authorities of Wallonia, and repealing the decree of March 27, 2014, relating to electronic communications between users and the public authorities of Wallonia
- A draft decree relating, for matters governed by Article 138 of the Constitution, to administrative simplification and electronic communications between users and the public authorities of Wallonia, and repealing the decree of March 27, 2014, relating, for matters referred to in Article 138 of the Constitution, to electronic communications between users and the public authorities of Wallonia (CO-A-2023-531)

Keywords: Digital portal – consent - functional qualities of electronic communication - eIDAS regulation - electronic identification schemes – trust services – collection of data from authentic sources - pre-filling of forms - personalized service offerings – metadata and browsing data

The Knowledge Center of the Data Protection Authority (hereinafter "the Authority"),

Present: Ladies Juline Deschuyteneer, Cédrine Morlière, Nathalie Raghenon, and Griet Verhenneman, and Messrs. Yves-Alexandre de Montjoye and Bart Preneel;

Considering the law of December 3, 2017, establishing the Data Protection Authority, particularly Articles 23 and 26 (hereinafter "LCA");

Considering Article 25, paragraph 3, of the LCA, according to which decisions of the Knowledge Center are adopted by a majority of votes;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter "GDPR");

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Considering the law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data (hereinafter "LTD");

Considering the request for an opinion from Ms. Valérie De Bue, Minister of Public Service, Information Technology, and Administrative Simplification of the Walloon Region, received on November 20, 2023; issues, on January 19, 2024, the following opinion:

I.

SUBJECT AND CONTEXT OF THE REQUEST FOR OPINION

1. On November 20, 2023, the Minister of Public Service, Information Technology, and Administrative Simplification of the Walloon Region requested the Authority's opinion regarding the following two draft decrees:

- A draft decree relating to administrative simplification and electronic communications between users and the public authorities of Wallonia, and repealing the decree of March 27, 2014, relating to electronic communications between users and the public authorities of Wallonia
- A draft decree relating, for matters governed by Article 138 of the Constitution, to administrative simplification and electronic communications between users and the public authorities of Wallonia, and repealing the decree of March 27, 2014, relating, for matters referred to in Article 138 of the Constitution, to electronic communications between users and the public authorities of Wallonia.

2. As indicated by the titles of these two draft decrees, they intend to repeal the two decrees of March 27, 2014, relating to electronic communications between users and the public authorities of Wallonia, and, for matters referred to in Article 138 of the Constitution, to electronic communications between users and the public authorities of Wallonia. According to the Explanatory Memorandum, the proposed modifications to these two decrees are so extensive that it was deemed preferable to repeal these

texts and adopt a new version.

3. The two draft decrees are similar in terms of the rules they establish, the difference lying in the scope of these two draft decrees, in accordance with the rules of distribution of competences, as is evident from the title of the second aforementioned draft decree. In this context, the present opinion is essentially drafted based on the draft decree relating to administrative simplification and electronic communications between users and the public authorities of Wallonia.

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users and the Walloon public authorities and repealing the decree of March 27, 2014, concerning electronic communications between users and the Walloon public authorities (hereinafter the "draft bill"). The remarks made apply *mutatis mutandis* to the draft bill concerning matters regulated under Article 138 of the Constitution (hereinafter the "draft bill 138"), to the provisions of which reference is made.

4. As stated in the Explanatory Memorandum, this draft bill aims to adapt the current legal framework regarding electronic communications between the Administration and the user in order to provide the possibility of carrying out a maximum of administrative procedures online, while maintaining the paper route to avoid excluding audiences less comfortable with digital communication means. Furthermore, in order to deploy a public administration connected to users, innovative, and efficient, it aims to frame the evolution of the online counter of the Walloon Region "My Space" towards a digital services portal offering its users a personalized experience: *ma.Wallonie*. This evolution of the electronic counter is part of the splitting of the common service in the field of administrative simplification and electronic administration "e-Wallonie-Bruxelles Simplification"; the draft bill intends to provide a new legal basis to allow the digital portal to obtain authorization to access the data from the National Register and thus ensure continuity of public service.

II.

EXAMINATION OF THE REQUEST FOR OPINION

5. As a preliminary point, the Authority emphasizes that regarding the normative framework for the processing of personal data carried out by the public authority through the digital portal of the Public Service of Wallonia, the draft bill must always be requested in addition to other normative texts that determine the essential elements of the processing of personal data necessary for the exercise of public service missions or for compliance with a legal obligation imposed on the relevant public authority.

1 This counter is currently provided by the common service between the Walloon Region and the French Community responsible for administrative simplification and electronic administration for the Walloon Region and for the French Community, called "e-Wallonie-Bruxelles Simplification" ("eWBS") (see Articles 1 and 4 of the cooperation agreement between the Walloon Region and the French Community of February 21, 2013, organizing a common service in the field of administrative simplification and electronic administration called e-Wallonie-Bruxelles Simplification, abbreviated as "eWBS"). According to the Explanatory Memorandum, eWBS was authorized in 2015 to access the data from the National Register and to use the identification number of the National Register in order to carry out the data processing necessary for the management of the electronic counter. It also appears from the Explanatory Memorandum that eWBS will be split and that this cooperation agreement is therefore set to disappear.

2 The following are concerned:

"a) the Walloon Region and the public interest bodies that depend on it;

b) the municipalities, provinces, and other local authorities governed by the Code of Local Democracy and Decentralization;

c) the bodies that directly depend on the institutions referred to in a) or b);

d) the entities, regardless of their form and nature, that have been created specifically to meet general interest needs, and whose activity is either predominantly financed by the public authorities or bodies mentioned in a), b) or c), or whose management is subject to control by these public authorities or bodies, or more than half of the members of the governing, management, or supervisory body are

appointed by these authorities or bodies;

e) the associations formed by one or more public authorities referred to in a), b), c) or d)." (see Article 1, 1° of the draft bill and Article 2, 1° of draft bill 138)

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the exchange of information (such as the data concerned, the purpose pursued by the data exchange, and the duration of data retention) 3. Indeed, it cannot be expected that the draft regulation will govern all essential elements of these processes, given its general scope, namely, to enable a secure electronic exchange of data between the user and the relevant public authority in the context of the exercise of its public interest mission.

a) Art. 1: Definition of "communication" 4

6. Article 1 of the draft regulation defines several concepts, among which the concept of "communication" is defined as follows: "any transmission of information that originates from the public authority or that is addressed to the public authority within the framework of its competencies, and which includes, in particular, the use of forms or any other document as well as the processing and dissemination of data."

7. Communication being, by nature, a processing of personal data, it appears redundant to indicate that communication, as referred to in the draft regulation, includes data processing. It is therefore appropriate to remove the term "processing." Likewise, since the communication in question is defined as a transmission of information, indicating that this communication includes a dissemination of data appears unclear. In the event that "dissemination" is to be understood as an extension of the transmission referred to, it is necessary to clarify Article 1, 2° of the draft regulation in this sense. Otherwise, the term "dissemination" should be removed.

b) Art. 4: Consent 5

8. Article 4, §1 of the draft regulation grants the Government the authority to determine the conditions to be met for considering that a public authority or a user has agreed to communicate solely by electronic means. Paragraph 2, line 1, provides that the public authority gives users who have agreed to communicate solely by electronic means the option to oppose any further communication by electronic means. Paragraph 2, line 2 grants the Government the authority to modulate the application of the previous line.

3 See in this regard opinion no. 154/2019 of September 4, 2019, concerning the draft decree amending the decree of March 27, 2014, relating to electronic communications between users and the Walloon public authorities and the draft decree amending the decree of March 27, 2014, concerning, for the matters referred to in Article 138 of the Constitution, electronic communications between users and the Walloon public authorities.

4 See Article 2, 2° of draft regulation 138.

5 See Article 5 of draft regulation 138.

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9. As the Authority has already indicated several times, the agreement or consent of the user for a public authority to communicate information to them electronically does not constitute the legal basis for such processing of personal data: the legal basis is, in fact, the necessity for this public authority to carry out the public interest mission assigned to it (Article 6.1.e of the GDPR) or the compliance with a legal obligation incumbent upon it (Article 6.1.c of the GDPR). The agreement or consent of the user thus constitutes an appropriate additional guarantee. Regarding the characteristics that this consent must have, it must be free, informed, unambiguous, and specific, like any expression of will, and must be given prior to the transmission of information electronically. It is necessary to supplement the draft on this point.

10. It should be recalled that under Article 22 of the Constitution, read in conjunction with Article 8 of the ECHR and Article 6.3 of the GDPR, it is a legislative norm (and not a regulatory norm) that must determine under what circumstances data processing is authorized, and this legislative norm must, in

any case, establish the essential elements of the processing (principles of legality and predictability). It follows that Article 4, §1 of the draft must be adapted to determine the conditions under which it may be considered that a user has agreed to communicate with the public authority solely electronically, instead of conferring this competence to the Government.

11. Regarding the legal regime applicable to this consent, it is the responsibility of the draft to ensure that the user can withdraw their consent (and not oppose) for any subsequent communication electronically at any time and in a manner as simple as they were able to give it. It is therefore recommended to adapt Article 4, §2, first paragraph of the draft in this sense, by providing that the public authorities concerned must clearly inform the user of the specific modalities by which this withdrawal of consent can be made (and not just the possibility of exercising this withdrawal).

12. Concerning Article 4, §2, second paragraph of the draft, whose objective is, according to the commentary on the article, to allow the Government to provide by decree an exception to the withdrawal of consent for any subsequent communication for the initiated procedure, it is up to the draft to determine the conditions under which the withdrawal of consent cannot take place, in order to respect the principles of legality and predictability recalled above.

6 See also in this sense, Opinion 52.981/4 of March 25, 2013, of the Council of State on a draft ordinance regarding electronic communication in the context of relations with public authorities of the Brussels-Capital Region, point 4.3, which states that "it is up to the legislator to determine, in its essential elements, a precise procedure by which it could be established unequivocally that the 'recipient' has given their informed consent for notifications with legal effects to be carried out by the public authority solely electronically with respect to the concerned public authority."

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13. Furthermore, as the Authority has already explained several times in its opinions regarding the framework of the eBox, it is appropriate to grant the user a right to withdraw consent, both in a general manner and in a specific manner, that is to say, only with respect to specific public authorities. It is indeed important that users can choose the public authorities with which they wish to communicate electronically.

c) Art. 5: Functional Qualities of Electronic Communication

14. Article 5 of the draft bill aims to introduce the principle of assimilation between a communication made between the user and the public authorities referred to in the draft bill via paper and that made electronically. Paragraph 3 of this draft Article 5 provides that the public authority "may define one or more procedures to be used in the context of electronic communication, provided that the requirement is objective, transparent, proportionate, and non-discriminatory." Paragraph 4 grants the Government the possibility to designate the minimum functions that must be satisfied by any procedure used in the context of electronic communication.

15. The term "procedure" referred to in paragraphs 3 and 4 is unclear: does it refer to an electronic signature procedure or another procedure? To improve the predictability of this provision, it is appropriate to refer to the procedures mentioned by a more precise formulation, if necessary, by referring to the regulatory standard that designates the minimum functions that any procedure used in the context of electronic communication must satisfy.

16. Furthermore, the expression "may define" can be interpreted as conferring normative power to the referred public authority. However, aside from the fact that the essential elements of data processing must be determined by the legislator (and not a public authority), the attribution of a power

7 See opinion No. 165/2019 regarding a draft royal decree amending Articles 136/1 and 136/2 of the royal decree implementing the Income Tax Code 1992 relating to the electronic sending of warning extracts of roles, points 12 and 13

(<https://www.autoriteprotectiondonnees.be/publications/avis-n-165-2019.pdf>); opinion No. 169/2022 regarding a draft law amending the law of February 27, 2019, relating to the electronic exchange of messages via the eBox, point 11

(<https://www.autoriteprotectiondonnees.be/publications/avis-n-169-2022.pdf>); opinion No. 253/2022 concerning Article 31 of a draft law containing various tax provisions, point 19 (<https://www.autoriteprotectiondonnees.be/publications/avis-n-253-2022.pdf>).

8 See Article 6 of the draft bill 138.

9 The commentary on the article merely states that: "in accordance with the primary objective of this new legal framework, which is not to compel public authorities to resort to a procedure such as qualified electronic signature, the third paragraph of the article thus leaves the choice of procedure depending on the circumstances of the case, provided that functional equivalence [...] is preserved." The supplementary information does not further clarify the scope of this term as it refers to the decree of June 12, 2014, relating to electronic communications and the electronic exchange of messages via the eBox between users and the Walloon public authorities, which implements the decree of March 27, 2014, relating to electronic communications between users and the Walloon public authorities. This decree notably mentions "any other electronic signature procedure, recognized and validated by the public authority" (Article 4), "electronic registered procedure" (Article 6).

10 See in this regard the observation made in point 17.

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Regulatory delegation to a public body is, in principle, not in accordance with the general principles of public law, as the Council of State has already pointed out. It would be appropriate to remedy this.

17. For the sake of completeness, the Authority notes that Article XII.24 of the Economic Law Code excludes from the scope of the eIDAS Regulation 910/2014 and Title 2 of Book XII of the Economic Law Code "all components used for electronic signatures, electronic registered mail, electronic timestamping, and electronic archiving, provided free of charge or for payment by an administrative authority [...] in execution of the missions entrusted to it by or under a law." However, the parliamentary works related to this provision emphasize that "the legislator recommends that all administrations make every effort in the future to use the qualified trust services referred to in the [eIDAS 910/2014] regulation and this Title 2, or at least to come as close as possible to it," in order to increase the "level of security (legal and technical) of transactions and administrative simplification for all stakeholders." The Authority therefore invites the author of the draft bill to consider the appropriateness of providing for the use of such services for administrative procedures carried out electronically that require them and to determine the level of guarantee required (qualified or not). Failing this, it is recommended to provide for a mandatory (and not optional) delegation of regulatory power to determine these guarantees.

d) Art. 6: Protection of Electronic Communication

18. It should be noted that the obligation referred to in Article 6 incumbent upon each public authority can only apply without prejudice to the obligations regarding the security of processing.

11 See in particular opinion 70.897/3 of March 28, 2022, on a draft royal decree "regarding the identification and registration of certain ungulates, poultry, rabbits, and certain birds," point 8.2: "The attribution of regulatory power to a public body, such as the AFSCA, is, in principle, not in accordance with the general principles of public law in that it undermines the principle of the unity of regulatory power and that direct parliamentary control is lacking. This observation is even more pertinent regarding the attribution of regulatory power to private bodies such as associations fighting animal diseases. Furthermore, the guarantees associated with classical regulation, such as those regarding publication, preventive control exercised by the Council of State, legislative section, and precise rank in the hierarchy of norms, are absent. Such delegations are only justified to the extent that they are very limited and have a non-political character, due to their secondary or primarily technical scope. The bodies that must apply the relevant regulation must be subject to both judicial control and political oversight in this regard. [...]"

12 Regulation (EU) No. 910/2014 of the European Parliament and of the Council of July 23, 2014, on electronic identification and trust services for electronic transactions in the internal market and repealing Directive 1999/93/EC

13 Addressing certain rules regarding the legal framework for trust services

14 Parl. Doc., Chamber, 2015-2016, 54, 1893/001, p. 15.

15 Ibid.

16 Whether the trust service provider is qualified or not, it must take all appropriate technical and organizational measures to manage the risks related to the security of the trust services it provides (see Article 19 of the eIDAS Regulation 910/2014). If the trust service provider is qualified within the meaning of this eIDAS regulation, it must also comply with the requirements set out in Articles 20 and following of the same regulation.

17 See Article 7 of draft bill 138.

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personal data imposed by the GDPR (which is directly applicable) on public authorities under the Walloon Region, when they exchange personal data electronically.

e) Art. 7: use of the eBox

19. Article 7 in draft form essentially reproduces the current Article 6 of the decree of March 27, 2014, which the draft intends to repeal, and which enshrines the adherence of public authorities in the Walloon Region to the eBox. Paragraph 3 of this draft article states that "public authorities communicating via the eBox may use:

1° the identification number of natural persons registered in the National Register, for the purposes of identifying and authenticating the natural person and for the purposes of communication with the natural person or with other public authorities;

2° the contact details, as referred to in Article 3, 17° of the law of August 8, 1983 organizing a National Register of natural persons, the contact details collected within the authentication service referred to in Article 9 of the law of July 18, 2017 on electronic identification, with the express consent of the person."

20. The principle of predictability requires that the data be linked to the purpose for which it is necessary that they be processed. The Authority thus assumes that the identification number from the National Register is necessary for the purposes of identifying and authenticating the natural person and that the contact details referred to are necessary for the purposes of communication with the natural person. If this is indeed the case, draft Article 7 must be adapted accordingly. Otherwise, it should be specified that the referred contact details are used for communication purposes.

21. If the use of the identification number in the National Register is exclusively intended for identification and authentication purposes, it is not necessary to provide an authorization for the public authorities concerned to process this number, given that under Article 8, §3 of the law of August 8, 1983 organizing a National Register of natural persons, "an authorization to use the National Register number is not required if the National Register number is exclusively used for the identification and authentication of a natural person within the framework of a computer application offered by a private or public institution of law."

18 According to supplementary information, "only communication with natural persons should be considered at the level of the eBox," so that the expression "with other public authorities" will be removed from Article 7, paragraph 3, 1° of the draft.

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Belgian or by the authorities, institutions, and persons referred to in Article 5, § 1. Therefore, it is necessary to remove this authorization on the grounds that it is not needed¹⁹.

22. Regarding the contact details referred to in point 2° of paragraph 3 of the draft Article 7, the Authority questions why it is not simply referring to the data mentioned in Article 8 of the eBox law²⁰ provided by the citizen for the purpose of transmitting messages via the eBox, similar to what is currently provided for in Article 6 of the decree of March 27, 2014, as replaced by the decree of October 1, 2020, amending the decree of March 27, 2014, concerning electronic communications between users and the Walloon public authorities. Indeed, as the Authority indicated in its opinion No. 154/2019²¹, it operates under the assumption that the objective of the legislators (federal and

Walloon) is that a single set of contact details is used concerning the citizen in the context of their exchanges with the administration via the eBox, regardless of whether the user is a federal, regional, or community public authority. Consequently, in this logic, the data referred to by the eBox law seems relevant. In the absence of a justification for the choice to address the contact details referred to in point 2°, the draft should be adjusted accordingly.

23. It should also be specified that the consent of the person for the use of the referred contact details must not only be explicit but also free, informed, specific, and unambiguous, as required by any manifestation of will. This consent must also be prior to the intended use.

24. The Authority questions why certain provisions of the eBox law have been integrated into the draft and not all provisions that impose obligations on eBox users as minimum guarantees for the individuals concerned contacted through this means. It is necessary to remedy this gap by completing the draft to include the obligation for the public authorities referred to in Article 1, 1° that communicate via the eBox to inform users in advance of the legal effects of the electronic exchange of messages via the eBox (Article 6 of the eBox law).

19 For the sake of completeness, the Authority emphasizes that under no circumstances can the identification number of the National Register be used as a unique authentication means as it is not secret and can be obtained quite easily (it is found at the top of the information mentioned on the front of the new identity cards).

20 Law of February 27, 2019, concerning the electronic exchange of messages via the eBox.

21 Opinion No. 154/2019 of September 4, 2019, concerning the draft decree amending the decree of March 27, 2014, regarding electronic communications between users and the Walloon public authorities and the draft decree amending the decree of March 27, 2014, concerning, for matters referred to in Article 138 of the Constitution, electronic communications between users and the Walloon public authorities, point 28.

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f) Art. 9: Operation of the Digital Portal

25. Article 9 of the draft bill provides for the development and availability by the Public Service of Wallonia (SPW) of a digital portal that allows any user, whether a natural or legal person, to access various services within the framework of electronic administration and administrative simplification.

26. Paragraph 2 of this Article 9 is worded as follows:

"The Service designated by the Government within the Public Service of Wallonia is responsible for the management of the digital portal and pursues the following objectives:

1° to enable users, whether natural persons or legal entities, to manage their administrative procedures and track their progress;

2° to pre-fill the necessary forms on behalf of the user in the context of the administrative procedures they initiate through the portal;

3° to manage and deploy electronic exchanges between users and public authorities;

4° to create and ensure the security of the data accessible via the portal and coordinate its use and access rules;

5° to provide, where applicable, additional services to public authorities according to the modalities determined by the government.

In order to fulfill these missions, the Service uses the following data:

1° for natural persons:

a) The identification number in the national register as well as the data referred to in Article 3, 1°, 2°, 5°, 6°, only the date of death, and 17° of the law of August 8, 1983, concerning the national register of natural persons;

b) the identification number of the Crossroads Bank for Social Security referred to in Article 8, §1, 2° of the law of January 15, 1990, concerning the establishment and organization of a Crossroads Bank for Social Security."

27. The first part of the sentence in paragraph 1 of paragraph 2 before the colon may be confusing in

that it states that "the Service [...] pursues the following objectives." Indeed, while it is true that, in principle, the objectives of processing personal data arise from the public service missions incumbent upon the public authority and for which data processing is necessary, it is important to ensure that the wording of Article 9, §2 of the draft makes a distinction between, on the one hand, the objectives pursued by the processing of personal data carried out through the digital portal referred to in Article 9 of the draft bill and, on the other hand, the public service missions incumbent, under the draft, on the Service designated by the Government within the SPW, responsible for managing said portal (hereinafter referred to as the "service responsible for managing the portal"), or in other words, the services/features that the digital portal intends to offer.

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28. Thus, allowing users to manage their administrative procedures and track their progress (as referred to in §2, para. 1, 1°) and pre-fill the necessary forms on behalf of the user within the framework of the administrative procedures they initiate through the portal (as referred to in §2, para. 1, 2°) can be considered as purposes (ancillary) of personal data processing within the meaning of Article 5.1.b) of the GDPR, provided that they are formulated in a sufficiently clear and precise manner. It is also important to ensure that the determination of these purposes is exhaustive in order to ensure all necessary predictability. Thus, the first purpose mentioned above must aim not only at the management and tracking of the progress of administrative procedures but also at the initiation of such procedures. The second purpose mentioned above must be formulated in clearer and more precise terms so that the data processing being specifically referred to can be easily understood: what data is collected (namely, only data from the National Register or also data from other authentic sources?) to pre-fill, on behalf of the user, the necessary forms for the processing of the procedures they initiate through the portal and made available by whom (the digital portal or the administration responsible for processing the application form?).

29. On the other hand, the "purposes" referred to in §2, paragraph 1, 3°, 4° and 5° cannot be considered as purposes of data processing within the meaning of Article 5.1.b) of the GDPR, insofar as they correspond more to the functionalities or services that the digital portal intends to make available. Thus, "managing and deploying electronic exchanges between users and public authorities" is more akin to personal data processing that can be carried out through the portal than to a purpose pursued by a data processing operation. According to the additional information, it indeed involves allowing the "user to complete their procedures and the administration to send documents" and thus "ensuring that data exchanges are properly directed to the correct recipients." A similar observation can be made regarding the "purpose" referred to in point 4° "creating and ensuring the security of the data accessible via the portal and coordinating its use and access rules." According to the additional information, this involves ensuring proper management of access to the "active account"²³ of the user. The "purpose" referred to in point 5° is written in broad terms and does not provide any real added value in terms of predictability of the functionalities or services that the portal intends to offer. It appears from the additional information that it involves being able to "offer new services to authorities, in connection with the user, such as integrated electronic signature tools, registered mail, etc." Furthermore, the services

22 The main purpose being the concrete reason for which the data exchange takes place: application for a renovation grant, etc. As indicated above in point 5, given the general scope of the draft, it cannot be expected that the draft defines the concrete purposes pursued by the electronic data exchange through the portal as this purpose is defined in the regulation governing the public interest missions of the public authority involved in the information exchange.

23 This refers to a validated and operational account that allows the user to access the functionalities of the digital portal and interact with the administration (Article 1, 3° in draft).

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The additional services referred to are likely to significantly impact the processing of personal data carried out through the aforementioned digital portal. The principles of legality and predictability require that these additional services be defined by a legislative standard (namely, in this case, the draft bill). The Government may, of course, specify the implementation modalities of the additional services that

will be determined by the draft bill.

30. It follows that in order to enhance the predictability of the draft bill and for the sake of legal certainty, it is appropriate to review Article 9, §2, as proposed, in light of the observations made above in points 27 to 29, ensuring that the purposes pursued by the processing of data carried out through the digital portal are distinguished from the functionalities/services that this portal intends to offer to users, and ensuring that all purposes and functionalities/services are described exhaustively.

31. Article 9, §2, paragraph 2 of the draft bill lists the personal data of the user of the digital portal that are processed by the service responsible for managing the portal. The data referred to includes the identification number in the National Register, the first and last name, the place and date of birth, the primary residence, the date of death, and the contact details provided voluntarily to the National Register, as well as the identification number of the Crossroads Bank for Social Security (BCSS) if the user is not registered in the National Register.

32. The author of the draft bill was questioned regarding the necessity and relevance of processing each of the aforementioned data in relation to each of the intended purposes. It appears from the supplementary information that the identification number in the National Register is necessary to reliably identify the user in order to ensure proper management of the citizen's procedures, their "personal" account, as well as access to their own data, and that the other mentioned data allows for the pre-filling of the corresponding fields in a form.

33. Regarding the identification number in the National Register and the identification number of the BCSS, the Authority takes this opportunity to remind that while the use of the BCSS identification number is free, this is not the case for the identification number of the National Register, the use of which is

24 The Authority assumes that this refers to the "active account" mentioned in Article 1, 3° of the draft bill. The Authority emphasizes the importance of using harmonized terminology for the purposes of predictability of the draft bill.

25 The supplementary information specifies that "these are basic identification data of the user that are often requested by administrations. Pre-filling forms with this data makes life easier for the user and complies with the principle of not asking the user for data that the administration already possesses."

26 See in this regard Article 8 of the Organic Law of January 15, 1990, of the Crossroads Bank for Social Security.

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strictly regulated by Article 8 of the Law of August 8, 1983 organizing a national register of natural persons²⁷.

34. For the sake of completeness, it should be recalled that in accordance with Article 87 of the GDPR, member states adopting a national identification number must ensure that it is used only subject to appropriate safeguards for the rights and freedoms of the data subject. Article 8 of the Law of August 8, 1983 organizing a national register of natural persons limits the use of the identification number from the Register to tasks of general interest and exempts from prior authorization by ministerial order the bodies that are authorized to use this number for this purpose by or under a law. Any legal provision that provides for such use must include a minimum of safeguards. As the Privacy Protection Commission (CPVP), the predecessor in law of the Authority, has already had the opportunity to highlight^[1], "such safeguards imply:

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that the use of a general identification number is limited to cases where it is strictly necessary, given that its use involves risks in terms of file interconnection,

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that the purposes of this use are clearly and explicitly specified so that the types of processing involved can be anticipated^[2],

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that the duration of retention of this number and its possible communications to third parties are also

regulated,

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that technical and organizational measures adequately frame its secure use, and

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that non-compliance with the provisions governing its use is sanctioned by effective, proportionate, and dissuasive penalties."

35. In this case, the Authority believes that the draft does not mention the specific purpose for which it is necessary for the service responsible for managing the digital portal to use the identification number from the national register of the user, contrary to what is required by the principles of legality and predictability. It is therefore necessary to supplement the draft on this point by stating that the identification number from the national register is necessary for the certain identification of the user in order to ensure proper management of the

27 Thus, the use of the national register number can, in principle, only take place to the extent that the instance(s) or person(s) referred to in Article 5, §1 of the Law of August 8, 1983 organizing a national register of natural persons have the required authorization under Article 8, §1 of the aforementioned law. According to this provision, authorization to use the national register number is, however, not required when this use is explicitly provided for by or under a law, decree, or ordinance.

[1] Opinion 19/2018 of February 29, 2018 on the draft law containing various provisions "Interior."

[2] Stating only "identification" as the purpose for using the national register identification number does not meet these criteria. The reasons for which identification is carried out and the framework for the use of this number must be specified in such a way that the types of processing that will be carried out using this number can be anticipated.

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citizen's procedures, their active account as well as access²⁸ to their own data.²⁹

36. Regarding the use of other data (first name and last name, place and date of birth, main residence, date of death, and contact details provided to the National Register), it appears from the supplementary information that the purpose pursued by this data processing is to pre-fill the necessary forms on behalf of the user in the context of the administrative procedures they have initiated. In accordance with the principle of data minimization set out in Article 5.1.c) of the GDPR, only data that is relevant, adequate, and limited to what is necessary for the intended purpose may be processed. In this case, the Authority draws the attention of the service responsible for managing the portal to ensure that for each of the data mentioned, it is collected for pre-filling purposes only when requested by the competent public authority responsible for processing the administrative procedure initiated by the user through the portal.

37. Furthermore, the Authority questions the necessity and relevance of the place of birth³⁰ in order to pre-fill the necessary forms on behalf of the user. The supplementary information does not really provide an answer to this question. In the absence of demonstrating the necessity and relevance of using the place of birth in the explanatory memorandum, this data will be removed from the draft.

38. It follows from the observations made above in points 31 to 37 that it is necessary to adapt Article 9, §2, paragraph 2, of the draft so that the purpose pursued by the use of the National Register number and that pursued by the other data are mentioned, while ensuring that only the data necessary and relevant to achieve the second purpose is mentioned, in order to respond to the principles of predictability and proportionality.

39. For the sake of completeness, the Authority notes that it appears from the supplementary information that the data referred to in Article 9, §2, paragraph 2 of the draft would also be used to "feed the citizen account" insofar as they "constitute the common basis for the various forms present on the portal." The Authority first considers that such a purpose formulated in broad terms ("common basis for the various forms present on the portal")

28 Regarding secure access to data, see below point 40.

29 These observations apply *mutatis mutandis* to the use of the identification number of the National Register of natural persons invested with management powers within legal entities (referred to in Article 9, §2, paragraph 2, 2° of the draft), provided that the necessity and relevance of this data is duly justified in light of the pursued purpose.

30 The Authority emphasizes in this regard that the place of birth may reveal the racial or ethnic origin of the individual concerned, which is a particular category of personal data within the meaning of Article 9.1 of the GDPR.

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should be reviewed in order to clearly and precisely define the concrete reason for which the data in question is processed and to be considered sufficiently determined in the sense of Article 5.1.b) of the GDPR. Furthermore, as far as the Authority understands, the intended purpose would be to feed the active account³¹ of the user with data from the National Register in order to pre-fill forms, which implies that the data processing in question is not only about accessing the data from the National Register but also about collecting this data and recording it in the user's active account in order to be able to feed it and pre-fill the forms. In this case, the Authority reminds³² that such duplication of data cannot take place given the significant risk regarding the quality of the processed data (and consequently, a risk of errors in the management of administrative procedures based on erroneous data)³³ that such duplication of data is likely to generate.³⁴ Moreover, for all useful purposes, if the intention of the author of the draft is to allow the user to have an active account on the digital portal that includes all administrative procedures initiated through said portal and intended for the competent public authorities, such centralization of a significant amount of data related to the administrative procedures carried out by users raises questions regarding the principles of necessity and proportionality³⁵ to which any processing of personal data must adhere, particularly in light of the significant risk of reusing the data for purposes other than those for which they were initially processed (risk of purpose diversion). The Authority is of the opinion that it is more appropriate for the digital portal to limit itself to redirecting the user's request/administrative procedure to each competent public authority.

31 The Authority indeed assumes that it refers to the "active account" and draws the attention of the project author to ensure the use of uniform terminology for predictability purposes.

32 See in particular Opinion No. 65/2019 of February 27, 2019, concerning a draft cooperation agreement amending the cooperation agreement of May 23, 2013, between the Walloon Region and the French Community regarding the development of a joint initiative on data sharing and the joint management of this initiative (<https://www.autoriteprotectiondonnees.be/publications/avis-n-65-2019.pdf>), point 13, and Opinion No. 150/2023 regarding a draft ordinance amending the Brussels Housing Code and the Code of Registration, Mortgage and Registry in order to organize the regional registration of residential leases, point 22 (<https://www.autoriteprotectiondonnees.be/publications/avis-n-150-2023.pdf>).

33 Indeed, the use of authentic data sources not only alleviates the administrative procedures incumbent on the data subject but also contributes—by avoiding unnecessary duplication of data registration—to ensuring that the processed data is accurate and up to date, in accordance with Article 5.1.d) of the GDPR.

34 If by the purpose related to feeding the user's active account, the intention of the author of the draft is to populate this account in order to pre-fill the necessary forms with data that is often entered by the user when initiating administrative procedures through the digital portal and which is not available in any authentic source, such a purpose can be considered legitimate, determined, and explicit in the sense of Article 5.1.b) of the GDPR, provided that it is defined in the draft in sufficiently clear and precise terms so that the data processing that is concretely intended can be easily understood. In such a case, it will also be necessary to provide in the draft a clear legal framework applicable to consent for

this data processing (withdrawal and under what specific modalities). Reference is also made to the observations above in points 9 to 11.

35 The author of a regulation governing the processing of personal data must be able to demonstrate the completion of this prior analysis of necessity and proportionality. The principle of necessity requires not only evaluating the effectiveness of the proposed processing for the intended objective but also determining whether this processing, as envisaged, constitutes the least intrusive means to achieve that objective. If the necessity of processing personal data is demonstrated, it must also be shown that it is proportionate (in the strict sense) to the objective it pursues, meaning that there is a fair balance between the various interests at stake, rights, and freedoms of the data subjects; in other words, it must be verified that the disadvantages caused by the processing as envisaged are not disproportionate in relation to the pursued objective.

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carried out via the aforementioned portal and that each public authority responsible for processing said request/action collects the related data. To the extent that the necessary and proportionate nature of such centralization of data within the digital portal is duly justified (which is not the case), it would still be the responsibility of the author of the draft to adopt specific safeguards to preserve the rights and freedoms of the individuals concerned in light of the risk of diversion of the aforementioned purposes. Under these conditions, it is appropriate to clarify the draft on this point in light of the observations made above.

40. Furthermore, regarding the purpose of pre-filling the necessary forms on behalf of the user using data from the National Register, it is important to explicitly provide in the draft that access to the portal is conditioned on electronic identification schemes that ensure the reliability of the claimed or purported identity of the user, with a high level of assurance as defined in Article 8, 2., c), of the EIDAS Regulation. As of April 19, 2023, Belgium has notified two electronic identification schemes: (1) that of electronic identity cards for Belgians and foreigners and (2) the itsme mobile application, both of which guarantee a high level.

41. Article 9, §3 of the draft provides that "any public authority that interacts through the digital portal uses the identification number from the National Register of the user as a unique key to enable the identification of the user and to facilitate the consultation of other authentic sources."

42. According to the commentary on Article 9, paragraph 3 of said article aims to legitimize the use of the identification number from the National Register by all administrations that interact with the digital portal in the context of processing a device that is specific to them. It also emerges from supplementary information that the administration must frequently consult other authentic sources (such as the SPF Finances or the BCSS) to complete the file in order not to request proof from the user.

43. The Authority believes that the term "interacts" is relatively broad. To improve the predictability of paragraph 3 of the draft Article 9, it is appropriate to replace it with a more precise formulation, namely "processes an administrative procedure initiated by a user at the

36 Regulation (EU) No. 910/2014 of the European Parliament and of the Council of July 23, 2014, on electronic identification and trust services for electronic transactions in the internal market and repealing Directive 1999/93/EC.

37 See in this regard Opinion No. 90/2020 of September 11, 2020, concerning a draft decree relating to coaching-oriented support and solutions for job seekers, point 10 (<https://www.autoriteprotectiondonnees.be/publications/avis-n-90-2020.pdf>).

38 Electronic identification schemes notified in accordance with Article 9, paragraph 1, of Regulation (EU) No. 910/2014 of the European Parliament and of the Council on electronic identification and trust services for electronic transactions in the internal market, the list of which is accessible via the following link: <https://op.europa.eu/fr/publication-detail/-/publication/f1437a21-de4e-11ed-a05c-01aa75ed71a1/language-fr/format-PDF/source-search>

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by means of the digital portal. In the same vein, it is appropriate to supplement this provision to provide

that the use of this identification number allows for a certain identification of the user and the consultation of authentic sources (and not other authentic sources) in order to complete the file to the extent that is strictly necessary and provided that the relevant public authority is legally authorized to consult the authentic source for the exercise of its missions. Indeed, it is worth recalling, for all useful purposes, that the consultation of an authentic source by a public authority is only permitted to the extent that this authority is legally authorized to access it under the organic law of that authentic source, as far as necessary for the exercise of the public service missions incumbent upon it.

44. Article 9, §4, of the draft law provides that:

"The data referred to in paragraph 2, subparagraph 2, are used to pre-fill, on behalf of the user, the administrative procedures they initiate through the digital portal. The data is automatically transmitted to the administrations managing the initiated procedures."

45. The first sentence of this provision is redundant in relation to what is provided in Article 9, §2, subparagraph 2, 1°³⁹, as it states that the data referred to in Article 9, §2, subparagraph 2 are used to pre-fill the administrative procedures that the user initiates through the digital portal. It is therefore appropriate to delete it.

46. On the other hand, the second sentence specifies which authorities are the recipients of the data referred to in Article 9, §2, subparagraph 2: these are the "administrations managing" the initiated procedures. Article 1 of the draft law does not define what this expression refers to. In order to enhance the predictability of this provision and to allow the concerned users to have a precise idea of who these managing administrations are to whom their data will be transmitted, it would be appropriate either to provide a definition of this expression in Article 1 of the draft law or to specify who these administrations are in Article 9, §4 of the draft law.

47. Article 9, §5 of the draft law designates the Service appointed by the Government, in accordance with paragraph 2, as the data controller. It is specified that "the data used is processed as long as the account is active."

48. The determination by regulation of the data controller contributes to the predictability of the norm and to the effectiveness of the rights of the concerned individuals enshrined by the GDPR. The Authority takes this opportunity to remind that the designation of the data controller must be adequate to the

39 See the observations above in point 36.

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regarding factual circumstances

40. In other words, it is necessary to verify for each processing of personal data who, in fact, pursues the purpose of the processing and has control over the processing. In this case, the Authority believes that it is not only the service responsible for managing the digital portal that will play a role as data controller but also the public authorities referred to in Article 1, 1°, who will access the portal and process an administrative procedure initiated by the user through the digital portal, which falls under their own jurisdiction. Therefore, it is necessary to supplement the draft proposal on this point to ensure all required predictability regarding the allocation of processing responsibilities to the relevant public authorities.

49. The commentary on the article refers to the retention period, which is more precise than mentioning the duration during which the data is "processed." To improve the predictability of the draft proposal, it is therefore recommended to adapt the draft to provide that the data used is retained as long as the account is active and that the deactivation of the account results in the deletion of the aforementioned data.

g) Art. 10: User access to their data

50. Article 10, §1 of the draft proposal provides, in its paragraph 1, that "for the purpose of transparency and to facilitate the user's access to their own data, the digital portal allows the consultation of data concerning them, whether held by authorities referred to in Article 1, 1° or by

authorities of other levels of government." According to the proposed paragraph 2, the "portal manager may communicate the data referred to in paragraph 1 to the user only after the prior written consent of the public authority managing the data."

51. It emerges from the commentary on this provision as well as from additional information that the aim is to offer the user the possibility to consult (become aware of) via the digital portal the data concerning them: for example, cadastral data regarding their real estate (held by the SPF Finances) or data related to the taxation of their vehicle (held by the Vehicle Registration Office), etc. However, the use of the term "communicate" in paragraph 2 may affect the predictability of this data processing provided for in Article 10, §1, to the extent that communication of data can be interpreted

40 Indeed, both the European Data Protection Committee and the Authority emphasize the need to approach the concept of data controller from a factual perspective. See: European Data Protection Committee, Guidelines 07/2020 on the concepts of controller and processor in the GDPR, version 2.0, adopted on 07 July 2021, p. 10 et seq. (https://edpb.europa.eu/system/files/2021-07/eppb_guidelines_202007_controllerprocessor_final_en.pdf) and Data Protection Authority, The point on the notions of data controller/sub-processor in light of Regulation EU 2016/679 on the protection of personal data (GDPR) and some specific applications to liberal professions such as lawyers, p. 1. (https://www.autoriteprotectiondonnees.be/sites/privacycommission/files/documents/Notions_RT_ST.pdf).

41 See Article 11 of the draft proposal 138.

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as necessarily involving a transmission of data. However, this is clearly not the intention. It is therefore appropriate to replace the term "communicate" with "allow for awareness."

52. Furthermore, certain expressions in the draft Article 10, §1, are unclear, which does not contribute to the predictability of this article. Thus, it appears from the supplementary information that the expression "authorities of other levels of government" is intended to refer to federal public authorities. It is therefore appropriate to designate the authorities referred to more precisely by referring to federal public authorities. Paragraph 2 refers to the "portal manager" and the "public authority managing data," concepts that are not defined in Article 1 of the draft. The Authority assumes that the "portal manager" is the service responsible for managing the portal referred to in Article 9, §2, of the draft and which is designated as the data controller under Article 9, §5 of the draft. If this is indeed the case, care should be taken to use uniform terminology to designate the same entity/public authority in order to improve the predictability of the draft. Otherwise, it is necessary to clarify the draft in this regard by providing, for example, a definition of what is meant by "portal manager." Regarding the "public authority managing data," it appears from the supplementary information that "the managing authority may be an authentic source belonging to another level of government, or another authority of the [Walloon Region]." Similarly, the draft should be clarified on this point to improve its predictability.

53. Moreover, the Authority draws the attention of the author of the draft to the fact that access to data held by federal authorities, referred to in draft Article 10, §1, must be formalized by the conclusion of a memorandum of understanding as defined in Article 20 of the LTD42.

54. For all practical purposes⁴³, the Authority emphasizes that the fact that the digital portal allows for the consultation (awareness) of data concerning the user held by public authorities referred to in Article 1 of the draft or by federal authorities has an impact on the allocation of responsibilities for the processing of this data, as it plays a role in this awareness of said data. Responsibility will lie (either exclusively or jointly) with the digital portal and the public authority holding the data that is consulted by the user.

42 See recommendation No. 2/2020 of January 31, 2020, regarding "The scope of the obligation to conclude a protocol to formalize communications of personal data from the federal public sector," p. 5, available via the following link:

<https://www.autoriteprotectiondonnees.be/publications/recommandation-n-02-2020.pdf>

43 It indeed appears from the supplementary information that "the portal is not responsible for the processing of this data and therefore does not have to ensure this right of access, but the objective is

to provide complete information to the citizen and to facilitate their right of access to their own data."

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55. Article 10, §2 of the draft states that "the data referred to in paragraph 1 may only be accessed by the user and may not be transmitted to other public authorities, unless they are explicitly authorized to access it, in accordance with the rules in force regarding data exchange and the protection of personal data."

56. When asked about the purpose of the proposed communication that would justify an exception to the prohibition on communication to other public authorities, the delegated official responded that "this data will be exclusively intended for consultation by the citizen. There are currently no plans to make it available to public authorities. However, if this were to be realized in the future (communication to other public authorities of the RW), it would be done exclusively within the regulated framework of data exchange. That is why this possibility has already been included in the text of Article 10, §2. In this scenario, the data could therefore be retrieved during the pre-filling of a form. In the example [...] of a real estate property, if the public authority has the authorizations to use the cadastral data, a renovation grant form for property X could therefore be automatically pre-filled with the data related to the user's property." (underlined by the Authority)

57. When asked about the data referred to by this communication and how they are necessary and relevant in light of the purpose(s) pursued, the delegated official responded that "the draft decree provides a generic framework. Each specific case will therefore be analyzed individually: for each relevant form, it will be analyzed whether the competent authority has the authorizations to access the data. The purposes will be those aimed at by the business mechanism (which has its own legal basis that allowed it to obtain authorization to access the data from the authentic source)."

58. Since Article 10, §2 of the draft intends to govern a communication of data that is purely hypothetical, such a provision does not add value in terms of predictability and should therefore be removed from the draft.

59. Furthermore, this provision is written in very general terms ("unless they are explicitly authorized to access it, in accordance with the rules in force regarding data exchange and the protection of personal data") in such a way that it can be interpreted as both prohibiting the transmission of data referred to other public authorities and allowing it, which affects the predictability of this provision.

60. Finally, insofar as the Authority understands the scope of this provision, in light of the additional information, it aims to allow communication of user data from different authentic sources to a public authority (referred to in Article 1 of the draft) responsible for processing an administrative procedure initiated by a user through the digital portal in order to enable that portal to automatically pre-fill the application form to the extent necessary for the fulfillment of the mission of

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Public service incumbent upon the relevant public authority, it is the responsibility of the author of the draft proposal to demonstrate and justify, if necessary, in the Explanatory Memorandum the necessary and proportionate nature of this data processing in light of the pursued purpose. This is lacking in the current state of the draft proposal. Furthermore, to the extent that such data processing is necessary and proportionate, Article 10, §2 of the draft proposal should be reformulated, particularly the pursued purpose, in such a way that a sufficient level of predictability is ensured and allows the concerned individuals to understand what data is communicated to whom and why.

61. It follows that, failing to remove Article 10, §2 of the draft proposal, this provision should be reviewed in light of the observations made above in point 60.

h) Art. 11: Offering of targeted services from the digital portal⁴⁴

62. Article 11 of the draft proposal, which aims to frame the offering of targeted services from the digital portal, is worded as follows:

"The portal may use metadata related to the actions taken by the user in order to propose new services to them.

By metadata, we mean all descriptive data related to an action that allows for understanding its main characteristics.

In accordance with paragraph 1, based on the actions referred to in Article 9, §4, the portal may propose to the user to renew actions they have taken or propose actions related to those they have previously undertaken.

The Service in charge of the digital portal designated in Article 9, §2 may proactively exploit the user's browsing data in order to continuously improve the personalization of the user's experience in the various actions and services made available to them.

In order to implement paragraphs 1 to 4, the Service obtains, in advance, the express and explicit consent of the user for the use of the metadata and browsing data concerning them."

63. This draft article seems to want to distinguish between metadata and browsing data, each of these categories of data pursuing a purpose (namely for metadata, to propose the renewal of actions already taken by the user or to propose actions related to those they have previously undertaken, and for browsing data, the continuous improvement of the personalization of the user's experience in the various actions and services made available to them).

64. The purpose of processing personal data being an essential element of data processing, it must be defined clearly, precisely, and exhaustively in a formal legal standard in order to meet the principles of legality and predictability. To this end,

44 See Article 12 of the draft proposal 138.

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In this regard, the Authority notes that the purpose pursued by the processing of browsing data is formulated quite broadly ("continuously improve the personalization of the user experience"). It emerges from the supplementary information that the objective aimed at by the proposed paragraph 4 is to offer the user, if they wish, the opportunity to benefit from personalized services based on interests communicated by the user (for example, being notified of a new procedure or information concerning one of their interests). It is therefore appropriate to adapt article 11, proposed paragraph 4 to define the purpose in terms that allow for a clear and predictable understanding of the envisaged data processing. In the same vein, the purpose pursued by the processing of metadata related to the proposal of "linked" procedures with those previously carried out would merit being formulated in more precise terms, in order to enhance the predictability of article 11, proposed paragraph 3. It is therefore necessary to adapt paragraphs 3 and 4 of article 11 in the draft to define the purpose(s) pursued respectively by the metadata and the browsing data in a sufficiently clear and precise manner, ensuring that all purposes are determined in the draft. The supplementary information indeed indicates that metadata and browsing data "could also allow for the proposal of procedures that the user has consulted multiple times without initiating them, to remind the user that they need to take action regarding a procedure initiated but not finalized, to propose procedures related to the user's profile, ...".

65. Furthermore, insofar as a browsing data can be considered as a metadata, the Authority believes that the definition of the term "metadata" appearing in proposed paragraph 2 may raise interpretative difficulties, on the grounds that said definition uses broad terms ("all", "related"). Moreover, proposed paragraph 3 (which concerns metadata) seems to target only the administrative procedures that are "initiated" by the user through the digital portal (as referred to in article 9, §4 in the draft) and not any procedure (as seems to emerge from the definition of the term "metadata"). If the applicant's intention is to distinguish between metadata and browsing data, it would be appropriate to define what is meant by metadata in more precise terms.

66. Additionally, it is necessary to ensure that the purpose of offering the user the ability to benefit from a personalized service offer based on an analysis of their browsing data is carried out to the extent that is strictly necessary for the execution of the public service mission of providing administrative procedures and services incumbent upon the digital portal. Consequently, the retention of browsing data for this purpose must be limited to what is strictly necessary (a maximum of one month).

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67. It should also be emphasized that consent cannot be a valid legal basis for data processing when

there is a clear imbalance between the parties, as is the case here between the user of the digital portal and the public authority responsible for managing said portal. The user's consent for the use of metadata and browsing data concerning them will therefore constitute an appropriate additional safeguard to preserve their rights and freedoms. Like any expression of will, this prior consent must also be free, informed, and specifically related to the use of metadata or browsing data for the intended purposes (in addition to being express and explicit).

68. In order for consent to be free and informed, it is important that the service responsible for managing the digital portal clearly and precisely informs users about these data processing activities and their consequences.

69. Furthermore, for the sake of predictability and legal certainty, it is appropriate to supplement the draft with a provision governing the legal regime applicable to the withdrawal of consent. Reference is made in this regard to the comments made in points 11 and 13 above concerning Article 4 of the draft.

70. Finally, as an appropriate safeguard for the rights and freedoms of the concerned users, it is important that the draft provides for a clear prohibition on using browsing data and metadata to make decisions against users. The Authority also reminds that Article 35.1 of the GDPR requires a data protection impact assessment to be carried out in certain cases (profiling, etc.).

FOR THESE REASONS,

The Authority

Believes that it is appropriate to:

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Adapt the definition of "communication" in Article 1, 2° of the draft in accordance with point 7;

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Supplement Article 4 of the draft to provide that consent to electronic communication with the public authority must be free, informed, unambiguous, specific, and prior to the transmission of information electronically (point 9);

45 See in this regard Recital 43 of the GDPR ("To ensure that consent is given freely, it should not constitute a valid legal basis for the processing of personal data in a particular case when there is a clear imbalance between the data subject and the data controller, particularly when the data controller is a public authority and it is unlikely that consent was given freely in light of all the circumstances of that particular situation. [...]") as well as the Guidelines 5/2020 on consent under Regulation 2016/679 of the European Data Protection Board, version 1.1, adopted on 4 May 2020 (https://edpb.europa.eu/sites/default/files/files/file1/edpb_guidelines_202005_consent_en.pdf), p. 9. Notice 06/2024 - 24/25

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adapt Article 4 of the draft to determine the conditions under which a user may be considered to have accepted to communicate with the public authority solely by electronic means (point 10), to guarantee the withdrawal of consent at any time, by establishing a specific information obligation regarding the withdrawal procedures to be borne by the relevant public authorities (point 11), and to determine the conditions under which the withdrawal of consent cannot take place (point 12);

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adapt Article 5 of the draft in light of the comments made in points 15 to 17;

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clarify Article 7, paragraph 3, of the draft, regarding the purpose pursued respectively by the identification number in the National Register and the contact details mentioned (point 20);

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remove the authorization to use the identification number from the National Register as long as the purpose pursued is exclusively to identify and authenticate a natural person (point 21);

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in the absence of a justification for the choice to process the contact details referred to in Article 7, paragraph 3, 2°, of the draft, adapt the draft in accordance with the comments made in point 22;

- in Article 7, paragraph 3, 2°, of the draft, specify that the person's consent must also be free, informed, specific, unequivocal, and prior (point 23);
- complete Article 7 of the draft to provide for a prior information obligation similar to that provided in Article 6 of the eBox law (point 24);
- review Article 9, §2, paragraph 1, of the draft in light of the comments made in points 27 to 30, ensuring to distinguish the purposes of data processing from the functionalities/services made available by the digital portal;
- complete Article 9, §2, paragraph 2, 1° of the draft to mention the specific purpose pursued by the use of the identification number in the National Register (point 35);
- adapt Article 9, §2, paragraph 2, of the draft in light of the comments made in points 31 to 38;
- clarify the draft regarding the processing of data referred to in Article 9, §2, paragraph 2 to feed the active account, in light of the comments made in point 39 and adapt the draft if necessary;
- explicitly provide that access to the digital portal is conditioned on electronic identification schemes ensuring the reliability of the claimed or presumed identity of the user, with a high level of assurance as defined in Article 8, 2., c), of the eIDAS Regulation (point 40);
- adapt and complete Article 9, §3 of the draft in light of the comments made in point 43;
- adapt Article 9, §4 of the draft in light of the comments made in points 45 and 46;
- complete and adapt Article 9, §5 in light of the comments made in points 48 and 49;

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- adapt and clarify Article 10, §1 of the draft in light of the comments made in points 51 and 52;
- in the absence of removing Article 10, §2 of the draft, review this provision in light of the comments made in point 60;
- adapt paragraphs 3 and 4 of Article 11 of the draft to define the purpose(s) pursued respectively by the metadata and browsing data in a sufficiently clear and precise manner, ensuring that all purposes are determined (points 64 and 66);
- define what is meant by metadata in more precise terms (point 65);
- provide that the consent referred to in Article 11, paragraph 5 of the draft must also be free, informed, and specific (point 67);
- complete Article 11 of the draft to include a provision governing the legal regime applicable to the withdrawal of consent (point 69);
- provide for a clear prohibition on using browsing data and metadata to make decisions against users (point 70).

For the Knowledge Center,
(signed) Cédrine Morlière, Director